

The Claremont City Council held a meeting on Wednesday, February 9, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
At-Large Councilor Matthew Mooshian

Also present:

John MacLean, Interim City Manager, via Zoom
Mark Chase, Assistant City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to accept the minutes of the January 26, 2022, City Council meeting.

Roll call vote:

**Contois - yes
O’Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.**

MAYOR'S NOTES

Mayor Girard said yesterday he was on the Mayoral Roundtable with Governor Sununu and there was a discussion about the Congressional seat redistricting (still in the works), and Rooms & Meals Tax.

City Manager Recruitment

Mayor Girard said that at the last Council meeting, it was noted there wouldn't be an update until the first meeting in March. Nothing has changed since the last meeting.

Legislative Updates

Mayor Girard said regarding SB 249 prohibiting planning and zoning ordinances that prohibit short-term rentals, that the biggest concern is that there would be less long-term rentals because people would make more money on short-term rentals.

CITY MANAGER'S REPORT

General Comments

Mr. MacLean's comments:

- Talked about the concept of Team throughout the organization, and building team spirit
- Claremont Rising Strong
- Sidewalks, heavy rainfall and freezing temperatures are creating serious issues; he and Public Works Director Alex Gleeson will look at that
- Working with Mr. Gleeson on a recycling report and hope to have something to the Council for the first meeting in March.
- Hiring people continues to be issue in the City. With the "Great Retirement" underway it is hard to find qualified candidates. We'll be talking about the ordinances that affect our ability to attract those kinds of candidates. We will be looking at the Merit Plan. We will address some of those needs during the budget process
- Budget process is underway
- Contracts are underway for three of the bargaining unions
- Abatements coming to Council in the future: Great River Hydro & Colonial Realty
- Facilities Management Team continues to address issues throughout our facilities
- New financial software package is rolling out; update will be coming

Financial Review

Ms. Richmond showed a PowerPoint presentation – DRA Reports and Fund Balance. She said in December that the City went through the tax rate setting process. The audit is a snapshot and doesn't reflect the unassigned fund balance. She went through the steps to setting the tax rate and Fund Balance determination. 2021 Fund Balance retention guidelines: Current

amount retained (10.44%) \$3,922,947; 17% retained (maximum recommended) \$6,385,059; \$5% retained (minimum recommended) \$1,877,958. We are using our Unassigned Fund Balance to lower the tax rate by \$530,000 and we also used some of that Fund Balance for the loan to the Downtown TIFD. In spite of this, the City has grown its Fund Balance by more than \$800,000 from the ending 2020 number compared to the projected 2022 number.

Community Development Update

Nancy Merrill, Planning and Development Director, showed a PowerPoint, Economic Development.

- Commercial/Industrial Tax Base
 - 2021 - \$224,648,436
 - 2016 - \$209,707,964 (River Road values added post TIF closure)
 - 2015 - \$196,987,968
- Average Annual Employment 2021 2nd quarter – 5754
- Unemployment – 2.2%
- Average Weekly Wage:
 - \$1,024.33 Average employment & wages 2nd quarter 2021
 - \$883.25 Average employment & wages 2020
 - Sole proprietors not included
 - Average weekly wage gone up 14% in Sullivan County
- New Projects
 - Circle T Car Wash
 - Old Rite Aid building
 - Matrix expanding
 - Mikros expanding
 - Lot of companies need employees
- Economic Development Adaptive Reuse Goal
 - Way School became housing
 - CDA took on Farwell Block
 - Façade
 - Brown Block new housing units & commercial development
 - Mill District
 - Sawtooth Mill
 - MakerSpace
 - Parking garage
 - 13 Water Street – Ink Factory
 - Goddard Block – new housing
 - Sullivan House
 - JSL building – Ink Factory
 - Peterson Mill will finish this spring; taking applications for tenants
 - Claremont Creative Center should be starting this year
 - Pleasant Street Project

Pleasant Street Update

Brian Colburn, Project Manager at McFarland Johnson, said at the end of the 2021 construction season, a majority of the underground infrastructure, sewer, water main, and most of the storm water were replaced/reconstructed. The pavement contractor will come back in mid-April, depending on the weather, and will finish by the end of June. More drainage work will be done. There will be final coats of pavement. For the sidewalk areas, there will be new curb, brick, and concrete. Also, there will be new trees, lights, and benches once the sidewalks are completed.

Councilor questions/concerns, and responses:

- Area is tight for tractor trailer deliveries
 - Mr. Colburn said the City opted not to have delivery areas; he can look at that
- Ask current businesses if they want outside dining in front of their shops
 - Ms. Merrill said the City will meet with the businesses
- When will the artwork come in
 - Ms. Merrill said the City will meet with art organizations in a couple of weeks; looking for collaborations with Claremont MakerSpace, Opera House, etc.
- Lights on the right side of Pleasant Street are out as are some lights on Main Street
 - Kevin McMahon, Project Engineer, said there was some underground work being done on Pleasant Street that impacted the lights and the repairs for the winter would have been quite costly. He's being told the lights on Main Street are powered by the parking garage.
- Parking spaces are only 17 feet in length; could those be changed
 - Mr. Colburn said that the goal was to maximize pedestrian space and that research has found that 85-90% of vehicles (not extended cab pickups) will fit in the 17-foot space; this provides a 15-foot travel lane behind the parking space; another aspect of feeling tight is traffic calming
 - More depth could be added to the parking stalls, but the ramifications would be higher speeds as the roadway opens; giving 2 feet of road means taking away 2 feet of sidewalk; some furnishings have already been ordered; there would be an impact on outdoor dining
 - There are cost implications; rework drainage that is already done; hydrants have already been installed; drawings would have to be updated (grading to meet ADA and drainage)
- Broad Street merge; is it needed; people don't know where to stop
 - Mr. Colburn said a traffic study found that a traffic signal was needed at that intersection (Broad Street and Glidden Street). Having two lanes mitigates stacking of vehicles so far back
 - This is not final; they will continue to monitor it
 - Final striping will be brighter and will last longer
- Crosswalk in front of Mascoma Bank
 - Mr. McMahon said they would be walking through the intersection, now they are walking outside of the travel lane

- Difficult to back into traffic from angled parking
 - Mr. Colburn said angled parking allows more parking; changing to parallel parking would lose close to half the number of parking spaces
 - Ms. Merrill said there was a lot of feedback that people didn't want parallel parking

Mr. MacLean said the construction aspect of the project is about 60% done and prices are increasing. He asked how much time does the City have to make changes, and what would be the impact if too much time goes by. Mr. Colburn said if you want to make changes, they need to know within a couple weeks. If they are not ready to go by mid-April, the contractor will seek monetary adjustment. The contract is fixed right now, and the contractor is being held to the bid price, but if there is a delay, the contract could open up, and they could put in a claim. A change within a couple of weeks may not impact the budget that much; also, time would be needed to update the drawings. Mr. MacLean asked about the change orders to date. Mr. Colburn said the original value was approximately \$3,935,000, with change orders to date of \$25,000 (big part was the truck route signage).

- Pleasant Street potholes
 - Mr. Colburn said per contract, the City is responsible
- Broad Street needs better markings
 - Mr. Colburn said he will look at that

Councilor Koloski asked Ms. Merrill about the art component and whether or not the City would get a portion of the sales. Ms. Merrill said that is being looked at.

Ms. Merrill said a set of Pleasant Street plans can be viewed in the City Manager's office and in the Planning and Development office.

Jeff Kinney, Charlestown Road, talked about parking on Pleasant Street and that his new Jeep was backed into. He thinks the angled parking is dangerous.

Tim Chapin, Real Steel Fitness owner and Lempster resident, said he has heard from some members that they don't feel safe backing out of the parking spaces. He is concerned that the presence of an emergency vehicle would close the entire road. Also, with the road being one way, there is only half a chance of people seeing his business. Regarding Taverne on the Square, he suggested putting a bumpout on the side toward the circle instead of on Pleasant Street. He said with the bumpouts, you lose four parking spots. He hoped the City would consider putting things back the way they were.

A motion was made by Councilor Stone and seconded by Councilors Limoges to put this on the next agenda (February 23) for discussion to see if we need to go back to the drawing board.

Councilor Koloski will vote no because people have had many opportunities to provide feedback. We have a signed agreement.

Councilor Stone said people are avoiding Pleasant Street; this needs further discussion.

Assistant Mayor Matteau will vote no. Time and energy have been expended to get people to tell us what they want. Money has already been spent. To go back to square one will cost the City a fortune. She suggested wait until this is done to see how it works.

Councilor Beliveau is not in favor of going back to the drawing board, however he agreed there should be a discussion of the project.

Councilor Stone said that Mr. Colburn said the project could be tweaked without significant cost and that is what he is suggesting, to put it out to the public

Norm Blouin, Ward 3, said the best thing to do is to take measurements of the road, divide it out and see what looks the best. A lot of people are ignoring the downtown because of this. Regarding Broad Street, he suggested talking to the school to move the students off Broad Street by finding them a different place to park. There should be two lanes with a right turn at the end.

Mr. Chapin thinks the Council should have knocked on the business doors. He doesn't think there would be a delay if the same size sidewalks were put back. Councilor Koloski said there were years of public meetings, marketing, website "Rethink Pleasant Street" and people could have come to the Council meeting when the Council voted to bond the project. Citizens made decisions on different items in the project. He is not in favor of changing the project.

Mr. MacLean was concerned that if Council goes forward with this and they have another hearing that it will not be very productive and will create consternation in the community. If Council wants to do something more, he asked if it would be appropriate to see if we could work on some minor adjustments rather than putting the whole project up for another scrutiny. He asked if we could isolate a couple of adjustments that were discussed.

Councilor Mooshian said a lot of work was put into this, and if it goes on an agenda, there needs to be goals. People have had chances to weigh in. We have to finish the project.

Assistant Mayor Matteau will vote no because she doesn't want to open this up to go back to square one.

Councilor O'Hearne will vote to put this on the next agenda. He agreed with Mr. MacLean that he can bring those items for discussion.

Councilor Stone said it is not uncommon for projects to need tweaking.

Councilor Beliveau said if this is done, he would like those who put the work into this to be invited to the meeting.

Mayor Girard said the motion on the floor was to have a public hearing on February 23 to discuss possible small changes to the project.

Roll call vote:

Contois - no

O'Hearne - yes

Stone – yes

Matteau - no

Koloski - no

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 6-3.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Planning Board

A motion was made by Councilor O'Hearne and seconded by Assistant Mayor Matteau to appoint Jonathan Nelson to seat 2 of the Claremont Planning Board.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Policy Committee

A motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne to re-appoint Fred Thompson to seat 4 of the Policy Committee.

Councilor Contois asked about Mr. Thompson's attendance as it was not marked on the application. Councilor Stone is the Chair of the Policy Committee and he said yes, Mr. Thompson has a good attendance record.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

**Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.**

CITIZEN'S FORUM

None

OLD BUSINESS

Pleasant Street Easements

Ms. Merrill said this is a pedestrian easement in the alleyway next to Daddy's Pizza on Pleasant Street. The alley will be well-lit and paved all the way to the rear of Broad Street. She talked to all the property owners that are involved. Delivery drivers will come in from the back.

A motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne that the Claremont City Council hereby authorizes the City Manager or his designees to negotiate, execute and take all such actions as may be required to acquire an easement or cross-easements for improved access from Pleasant Street to city parking lots over Map Lot 120-83, 120-84, 120-80, 120-79, or 120-82 upon such terms and conditions as the City Manager or his designees may determine.

**Roll call vote:
Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.**

NEW BUSINESS

Resolution 2022-18 North & Main Street Project Wetland Mitigation – Public Hearing

WHEREAS by Resolution 2007-14, the City Council established a City Forest Management Fund (the Fund), pursuant to RSA 34:1-a, for the maintenance, operation and management of

city-owned undeveloped land, to be funded by the proceeds from the sale of timber harvested according to the City's Forest Management Plan; and

WHEREAS the City is undertaking the final engineering for the North & Main Street intersection project; and wetlands will be impacted in the project area whose impacts the state has determined will require mitigation; and

WHEREAS the City Council finds that a conservation easement on Map Lots 8-1, 8-2, 18-1 and 18-2 is consistent with the Action Plan for the Whitewater Watershed recommendations and aquatic buffer preservation would serve as mitigation for the impacts of the North & Main Street project;

NOW THEREFORE BE IT RESOLVED to raise, appropriate and expend the sum of up to \$19,200 for surveys, baseline assessments, easements and associated stewardship fees, or a payment in lieu of mitigation if necessary;

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to withdraw the sum of up to \$66,000 from the City Forest Management Fund for the purpose of wetland mitigation (to have no impact on the tax rate), and also to undertake all actions and execute all documents that may be required to implement this resolution. *(2/3 Vote Required)*

Ms. Merrill said this project has been on the books since 2004. NH DES (Department of Environmental Services) said that if the City didn't have the appropriate conservation easement, then the City would have to pay \$330,000 to DES. She said the proposed resolution that was in the Council packet had "up to \$66,000," but that amount should be changed to "up to \$19,200" instead.

There was a discussion about the recreational right-of-way for ATVs and snowmobiles. Ms. Merrill said a management plan will come back to the Council. The intention is to keep the trails where they are.

Mayor Girard opened the public hearing.

Norm Blouin, Ward 3, said he is a snowmobiler and involved in the Whitewater area for years. He said we need to get the pine back in there as pine cleans the water as it flows underground. He suggested a Boy Scout group or prisoners could plant the trees.

Mayor Girard closed the public hearing.

Regarding the OHRV trails, Mr. McCrory said the easements will come back to the Council for approval.

A motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne to adopt Resolution 2022-18 North & Main Street Project Wetland Mitigation.

Assistant Mayor Matteau read the resolution into the record.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

COMMITTEE REPORTS

Mayor Girard said the Airport Advisory Board met and discussed the aviation easement(s).

Councilor Stone said the Policy Committee met and discussed housekeeping items. He was named the Chair and Councilor O'Hearne was named Vice Chair.

Assistant Mayor Matteau said the Claremont Planning Board will meet next Monday to finish the CIP (Capital Improvements Plan).

Councilor Contois referenced the Conservation Commission report that was in this Council packet.

FUTURE AGENDA ITEMS AND DIRECTIVES

Assistant Mayor Matteau handed out the wording for a proposed Council Rule change.

Proposed Council Rule Change submitted by Assistant Mayor Matteau

Existing wording, Council Rule 17:

• **17. - Voting.**

Every member, present when a question is put shall vote either "Aye" or "Nay", unless Council shall, for special reason, excuse him/her from voting. Application to be excused from voting must be made before the votes are called for. The member having briefly stated the reason for his/her request, the decision thereon shall be made without debate. The Mayor shall vote last and all votes on motions accepted by the Council shall be by roll call vote.

Proposed change:

Eliminate "and all votes on motions accepted by the Council shall be by roll call vote."

Submitted for consideration by Assistant Mayor Debora Matteau, 2-9-2022

Ms. Merrill asked for more direction on the next Pleasant Street discussion. Mr. MacLean said he was concerned about focusing the conversation about Pleasant Street (i.e. look at a couple of adjustments that Council spoke of). He can work with Ms. Merrill and the engineering firm to come back with a couple of different scenarios on these adjustments. He would like to focus this so that it does not become a referendum.

Assistant Mayor Matteau agreed you need to get the word out to the public what the focus is.

Councilor Stone said he would agree to have a structured discussion.

Councilor Koloski asked for clarification of what the Council is asking from Ms. Merrill.

Mr. MacLean said he would like to have the flexibility to go with what he heard. He doesn't think it is in the City's best interest to have a referendum at this time. He understands the Council is interested in making some adjustments. He will bring back those adjustments for the Council, in order to have something to focus on.

Councilor Stone said he would like the Planning office to reach out to the business owners to get their take on it. Ms. Merrill said her office has been in touch with them for three years. The last email was sent six 6 weeks ago. There has been regular communication. Mike McCrory, Project Manager, said they have targeted email lists of building and business owners, including one who spoke tonight. During the construction season, they send out almost weekly emails. When necessary, they have gone door to door. Ms. Merrill said every business owner has the cell phone number of Mr. McMahon.

Assistant Mayor Matteau was concerned there would not be time to get enough information to have this on an agenda in two weeks.

Regarding the bond, Ms. Richmond said there are specific timeframes and you don't want to violate any IRS rules.

Norm Blouin, Ward 3, said regarding Pleasant Street that he doesn't feel that it has to go back to square one or to have a public meeting. The Council should be able decide to adjust the parking spaces.

Councilor Beliveau would like to get the Revolutionary War plaque at the cemetery, behind the Library, fixed.

Councilor Mooshian said he would like to see a discussion about redistricting and how that will impact Claremont. As proposed, Claremont would lose representation. He could prepare a presentation. Councilor Stone suggested that be put under Legislative Update.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:56 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Beliveau to adjourn.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council